

Syllabus

HERNANDEZ ET AL. *v.* MESACERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR
THE FIFTH CIRCUIT

No. 17–1678. Argued November 12, 2019—Decided February 25, 2020

Respondent, United States Border Patrol Agent Jesus Mesa, Jr., shot and killed Sergio Adrián Hernández Güereca, a 15-year-old Mexican national, in a tragic and disputed cross-border incident. Mesa was standing on U. S. soil when he fired the bullets that struck and killed Hernández, who was on Mexican soil, after having just run back across the border following entry onto U. S. territory. Agent Mesa contends that Hernández was part of an illegal border crossing attempt, while petitioners, Hernández’s parents, claim he was playing a game with his friends that involved running back and forth across the culvert separating El Paso, Texas, from Ciudad Juárez, Mexico. The shooting drew international attention, and the Department of Justice investigated, concluded that Agent Mesa had not violated Customs and Border Patrol policy or training, and declined to bring charges against him. The United States also denied Mexico’s request for Agent Mesa to be extradited to face criminal charges in Mexico.

Petitioners sued for damages in U. S. District Court under *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U. S. 388, alleging that Mesa violated Hernández’s Fourth and Fifth Amendment rights. The District Court dismissed their claims, and the United States Court of Appeals for the Fifth Circuit affirmed. After this Court vacated that decision and remanded for further consideration in light of *Ziglar v. Abbasi*, 582 U. S. 120, the Fifth Circuit again affirmed, refusing to recognize a *Bivens* claim for a cross-border shooting.

Held: *Bivens*’ holding does not extend to claims based on a cross-border shooting. Pp. 99–114.

(a) In *Bivens*, the Court implied a Fourth Amendment claim for damages even though no federal statute authorized such a claim. The Court later extended *Bivens*’ reach to cover claims under the Fifth and Eighth Amendments. See *Davis v. Passman*, 442 U. S. 228; *Carlson v. Green*, 446 U. S. 14. But *Bivens*’ expansion has since become “a ‘disfavored’ judicial activity,” *Abbasi, supra*, at 135, and the Court has generally expressed doubt about its authority to recognize causes of action not expressly created by Congress, see, e. g., *Jesner v. Arab Bank, PLC*, 584 U. S. 241, 264–265. When considering whether to extend *Bivens*, the Court uses a two-step inquiry that first asks whether the request in-